

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Talisayan	Team: Squad #11	CCRB Case #: 202105330	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 09/07/2021 10:45 PM	Location of Incident: Inside § 87(2)(b)	Precinct: 114	18 Mo. SOL 3/7/2023	EO SOL 3/7/2023	
Date/Time CV Reported Wed, 09/08/2021 3:04 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/08/2021 3:04 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Schultz	19311	970198	114 PCT
2. POM Jason Rieger	12886	947398	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jonathan Dimarzo	11963	969656	114 PCT
2. PO Anthony Fontana	11116	960549	114 PCT
3. SGT David Gomez	00204	945771	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jason Rieger	Abuse: Police Officer Jason Rieger entered § 87(2)(b) in Queens.	
B.POM Daniel Schultz	Abuse: Police Officer Daniel Schultz entered § 87(2)(b) in Queens.	
C.POM Jason Rieger	Abuse: Police Officer Jason Rieger forcibly removed § 87(2)(b) to the hospital.	
D.POM Jason Rieger	Discourtesy: Police Officer Jason Rieger spoke discourteously to § 87(2)(b)	
E.POM Jason Rieger	Off. Language: Police Officer Jason Rieger made offensive remarks to § 87(2)(b) based on a perceived mental illness.	
F.POM Jason Rieger	Discourtesy: Police Officer Jason Rieger spoke discourteously to § 87(2)(b)	
G.POM Jason Rieger	Abuse: Police Officer Jason Rieger refused to provide his name to § 87(2)(b)	
H.POM Jason Rieger	Abuse: Police Officer Jason Rieger failed to provide § 87(2)(b) with a business card.	

Case Summary

On September 8, 2021, § 87(2)(b) filed an online complaint with the CCRB.

On September 7, 2021, at approximately 10:00 p.m., § 87(2)(b) called 911 regarding her tenant, § 87(2)(b) and alleged that § 87(2)(b) struck her in the face with a door. At approximately 10:45 p.m., PO Jason Rieger and PO Daniel Schultz of the 114th Precinct responded to § 87(2)(b)'s apartment located at § 87(2)(b) in Astoria, Queens. FDNY § 87(2)(b) and § 87(2)(b) also responded. PO Rieger and PO Schultz entered § 87(2)(b)'s apartment (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). Inside the apartment, PO Rieger and § 87(2)(b) argued about her alleged injuries. PO Rieger pulled § 87(2)(b) out of her apartment and brought her to an FDNY ambulance and told EMT § 87(2)(b) and EMT § 87(2)(b) to transport § 87(2)(b) as an emotionally disturbed person (**Allegation C: Abuse of Authority, § 87(2)(g)**). When § 87(2)(b) asked for her purse, PO Rieger allegedly told § 87(2)(b) “I don’t give a fuck” or “I don’t give a shit” (**Allegation D: Discourtesy, § 87(2)(g)**). When the EMTs assessed § 87(2)(b) in the ambulance, PO Rieger allegedly stated that § 87(2)(b) was “crazy and on psych meds” (**Allegations E and F: Offensive Language and Discourtesy, § 87(2)(g)**). § 87(2)(b) allegedly asked PO Rieger for his name and a business card. PO Rieger allegedly walked away without providing his name and business card to § 87(2)(b) (**Allegations G and H: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was transported to § 87(2)(b) in Queens.

The investigation received body-worn camera (BWC) footage from the following officers: PO Rieger, PO Schultz, PO Jonathan Dimarzo, and PO Anthony Fontana.

§ 87(2)(b) was not arrested or issued a summons during the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jason Rieger entered § 87(2)(b) in Queens.

Allegation (B) Abuse of Authority: Police Officer Daniel Schultz entered § 87(2)(b) in Queens.

BWC footage from PO Rieger [**Board Review 01, timestamps 01:00 to 04:16**] captures his initial encounter with § 87(2)(b) on the second-floor hallway of § 87(2)(b)'s building. PO Rieger and PO Schultz approach § 87(2)(b) who is holding a towel to her face. At 02:20, § 87(2)(b) informs the officers that § 87(2)(b) hit her with a door, gesturing with her right-hand thumb toward her apartment down the hall. She shows PO Schultz her mouth and says that the stitches in her mouth are loose. PO Rieger tells § 87(2)(b) to hold on. With § 87(2)(b) still down the hall, PO Rieger opens the unlocked door – the door is ajar – to § 87(2)(b)'s apartment and enters it. PO Schultz tells § 87(2)(b) to stay put and enters the apartment. PO Schultz and PO Rieger knock on § 87(2)(b)'s bedroom door. § 87(2)(b) describes to the officers his account of the conflict, describing § 87(2)(b) attempting to serve him an eviction notice that was not signed by a judge and how he closed the door to end his conversation with § 87(2)(b).

BWC footage from PO Schultz [**Board Review 02, timestamps 02:04 to 02:38**] captures PO Schultz approaching § 87(2)(b) who is outside her apartment and walking toward the officers. She tells PO Schultz that § 87(2)(b) hit her with a door. With her right hand, she gestures toward her apartment down the hall. She shows PO Rieger her mouth. PO Rieger walks down the hall. § 87(2)(b) points down the hall with her right hand. PO Schultz asks if she wants an ambulance, to which § 87(2)(b) states that she does not know. PO Schultz tells her to stay right here and follows PO Rieger to the apartment. As PO Rieger is standing at the threshold of the now open apartment door, § 87(2)(b) screams, “Get him out, please!” PO Rieger goes further into the apartment.

§ 87(2)(b) stated that inside her apartment, she asked § 87(2)(b) whether he was leaving on September 15, 2021. She followed him to his room, where he closed the door. The door did not

hit § 87(2)(b)'s face. She then called 911 and told the dispatcher that § 87(2)(b) slammed the door on her face, that she did not feel safe, and that she needed the police to speak to § 87(2)(b). The dispatcher asked whether § 87(2)(b) needed an ambulance and she said she needed an ambulance. About 45 minutes after calling 911, § 87(2)(b) heard a knock on her door. She opened the door, and PO Rieger and PO Schultz entered the apartment. § 87(2)(b) did not say anything to the officers as they entered the apartment, and she did not gesture to the officers to come inside **[Board Review 03]**.

PO Rieger responded to a radio run of an assault in progress. PO Rieger and PO Schultz met § 87(2)(b) who was in the hallway screaming. PO Rieger tried to ascertain what was happening, determine whether she was injured, and whether there were any individuals responsible for her alleged injuries. She held a white, clean washcloth to her lips and gums. She told PO Rieger that she was bleeding profusely, and that § 87(2)(b) punched her. § 87(2)(b) did not have any visible injuries. PO Rieger left § 87(2)(b) to interview § 87(2)(b). When asked whether PO Rieger asked for permission to enter the apartment, PO Rieger stated that the door was open. § 87(2)(b) also wanted the officer to remove § 87(2)(b) from the apartment **[Board Review 04]**.

PO Schultz testified that after speaking to § 87(2)(b) in the hallway, she invited the officers inside her apartment. She did not object to the officers entering **[Board Review 05]**.

The Event Information § 87(2)(b) provides a log of the information about this incident. It is noted that § 87(2)(b) reported being struck in the face with a door by § 87(2)(b) and that he might have weapons in his room **[Board Review 06]**.

People v. Satornino, 153 A.D.2d 595 indicates that consent to enter premises can be established by conduct, such as pointing, as well as words **[Board Review 17]**.

§ 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Jason Rieger forcibly removed § 87(2)(b) to the hospital.

BWC footage from PO Rieger **[Board Review 01, timestamps 06:40 to 12:20]** depicts the entirety of PO Rieger's interaction with § 87(2)(b) inside the apartment. § 87(2)(b) yells at the officers to remove § 87(2)(b). PO Rieger asks whether § 87(2)(b) wants to be examined by EMS. § 87(2)(b) claims that § 87(2)(b) hit her with a door. PO Rieger tells § 87(2)(b) that there is no blood on her towel and her mouth. PO Rieger asks whether § 87(2)(b) had oral surgery, which she confirms. § 87(2)(b) continues to ask the officers to remove § 87(2)(b) which PO Rieger refuses. § 87(2)(b) accuses PO Rieger of saying that she is lying because she is a woman. PO Rieger walks out of the apartment. § 87(2)(b) tells PO Rieger to wait. PO Rieger and § 87(2)(b) argue about § 87(2)(b) filling out court documents under false pretenses. PO Rieger again asks whether § 87(2)(b) wants to be examined by EMS or taken to the hospital. PO Rieger asks if § 87(2)(b) wants to go the hospital because she stated she was injured. At 12:20, § 87(2)(b) says yes. She begins making a phone call in the kitchen. PO Rieger turns to the officers behind him and says that § 87(2)(b) needs to be evaluated as an emotionally disturbed person. At

no point in the footage does PO Rieger discuss § 87(2)(b)'s medication inside her apartment.

From 12:58 to 16:07 of PO Rieger's footage, PO Rieger instructs § 87(2)(b) to come with him. § 87(2)(b) says that she does not want to go to the ambulance. PO Rieger and PO Fontana take hold of § 87(2)(b)'s arms. With PO Rieger holding onto § 87(2)(b)'s right arm,

the officer appears to pull § 87(2)(b) by her arm out of the apartment. He maintains his hold on her as he escorts her outside of the apartment.

PO Rieger's BWC footage further depicts the officer's interaction with EMT § 87(2)(b) and EMT § 87(2)(b). In his footage (timestamp 16:02), PO Rieger informs EMT § 87(2)(b) that § 87(2)(b) is an emotionally disturbed person and requires a psychiatric evaluation. From 19:30 to 19:50 of PO Rieger's footage, EMT § 87(2)(b) asks § 87(2)(b) about her medication. § 87(2)(b) states that she uses trazadone for sleep. From 26:27 to 28:33, PO Rieger enters the ambulance and asks about § 87(2)(b)'s prescription medication and asks about trazadone. § 87(2)(b) states that it is sleeping medication. PO Rieger states, "It's a narcotic, isn't it?" PO Rieger tells the EMTs that § 87(2)(b) needs to be evaluated. EMT § 87(2)(b) states that under their classification, they cannot force § 87(2)(b) to go to the hospital. EMT § 87(2)(b) states that § 87(2)(b) is not a danger to herself. PO Rieger states that he can and that he is going to. As EMT § 87(2)(b) and PO Rieger argue, PO Rieger states that he does not know whether § 87(2)(b) is a danger to herself or anyone else and that she must go.

From 42:33 to 43:02 of PO Rieger's footage, PO Rieger informs FDNY EMT Lt. § 87(2)(b) that the situation to which the officers originally had responded was a landlord tenant dispute. PO Rieger describes § 87(2)(b) as completely erratic and out of control upstairs and that it took almost 30 minutes to calm § 87(2)(b) down. PO Rieger says, "So we make the decision that —" EMT Lt. § 87(2)(b) interrupts and says, "She either gets arrested or she goes to the hospital, right?" PO Rieger says, "Yeah." EMT Lt. § 87(2)(b) says, "You act like a fool and now you get to pay for it." § 87(2)(b) told the officers that § 87(2)(b) slammed a door on her face, informing them that she did not feel safe with § 87(2)(b) in her apartment. PO Rieger did not believe her and asked her about her oral surgery. After the officers spoke to § 87(2)(b) and EMS arrived, PO Rieger spoke to § 87(2)(b) about the EMTs. § 87(2)(b) said that she did not need EMS and that she was going to sleep. PO Rieger told her that she was coming with him, grabbing § 87(2)(b)'s right wrist. PO Rieger did not explain to § 87(2)(b) why she needed to go to the hospital. PO Rieger pulled § 87(2)(b) from the kitchen and toward the hallway. § 87(2)(b) did not struggle with PO Rieger. She did not convey to the officers that she wanted to harm herself or anyone else. PO Rieger brought § 87(2)(b) outside to a FDNY ambulance. EMT § 87(2)(b) and EMT § 87(2)(b) assessed § 87(2)(b) asking her whether she had thoughts of self-harm to which § 87(2)(b) denied. § 87(2)(b) told EMS she was taking trazadone as sleeping medication (she did not use the drug on the day of the incident). § 87(2)(b) told the EMTs that she did not need to go to the hospital, and they told her that she could sleep it off. PO Rieger told the EMTs that § 87(2)(b) was "crazy and on psych meds" and that the EMTs needed to take § 87(2)(b) to the hospital. PO Rieger and the EMTs argued until PO Rieger asserted that he had the authority to determine that § 87(2)(b) required an evaluation at the hospital. § 87(2)(b) was transported to § 87(2)(b) and was released within three hours of her arrival [Board Review 03].

EMT § 87(2)(b) and EMT § 87(2)(b) responded to a call for an injury. At the scene, the EMTs were approached by two officers, who said that the situation might be a civil dispute between two people. After a few minutes, the officers brought § 87(2)(b) down to the ambulance. She was upset, screaming, and using racial slurs. She did not display any aggressive movements, other than jerking left and right. PO Rieger informed the EMTs that § 87(2)(b) was an emotionally disturbed person and needed to go to the hospital. He did not explain why he considered her an emotionally disturbed person. The EMTs assessed § 87(2)(b). She may have mentioned that she had depression. When the EMTs asked § 87(2)(b) questions about whether she wanted to hurt herself, others, and whether she was experiencing hallucinations, § 87(2)(b) said "no" to each of these questions which are used to determine whether someone is an emotionally disturbed person. PO Rieger interrupted the assessment and asked why the EMTs were trying to convince her not to go to the hospital. The EMTs explained to PO Rieger that they were determining whether § 87(2)(b) met the criteria for sending someone to the hospital as an emotionally disturbed person. The EMTs determined that § 87(2)(b) was upset, possibly intoxicated, and likely required

staying somewhere else. The EMTs requested their supervisor, EMT Lt. § 87(2)(b) EMT § 87(2)(b) informed EMT Lt. § 87(2)(b) about the EMTs' dispute with PO Rieger. EMT Lt. § 87(2)(b) did not appear to grasp the situation. EMT § 87(2)(b) explained during his interview that the EMTs have no authority over the police and that the police have the final say as to whether someone is an emotionally disturbed person. § 87(2)(b) was transported to the hospital without PO Rieger, who refused to ride in the ambulance **[Board Review 08]**

EMT § 87(2)(b) provided a statement largely consistent with EMT § 87(2)(b)s. During the EMT's assessment of § 87(2)(b) she declined to discuss her mental health history. She was upset but not confused: she was alert and oriented and did not appear to be having a mental breakdown. EMT § 87(2)(b) determined that § 87(2)(b) was not having a mental breakdown because there were reasons for her being upset. The EMTs learned that she had a dispute with § 87(2)(b) and that § 87(2)(b) appeared upset about her ongoing struggle with § 87(2)(b). Other than being very emotional, § 87(2)(b) did not exhibit any behaviors or actions that suggested she was a harm to herself or anyone else. PO Rieger did not provide to the EMTs a clear reason why § 87(2)(b) needed to be transported to the hospital other than telling the EMTs that § 87(2)(b) was an emotionally disturbed person and that she needed to go to the hospital **[Board Review 09]**.

EMT Lt. § 87(2)(b) arrived at EMT § 87(2)(b) and EMT § 87(2)(b)s request. The EMTs informed him that the officers wanted to send § 87(2)(b) to the hospital as an emotionally disturbed person. The EMTs felt that the officers were being harsh. They did not want to take her to the hospital because she was just upset. EMT Lt. § 87(2)(b) spoke to PO Rieger, who said that § 87(2)(b) was acting irrationally upstairs, that the officers were telling her to calm down, and that she was not calming down. PO Rieger said he saw psychiatric medication and that § 87(2)(b) required an evaluation. Other than telling EMT Lt. § 87(2)(b) that § 87(2)(b) was rambling and that the officers were telling her to calm down, PO Rieger did not provide further details to § 87(2)(b) about why she was emotionally disturbed. EMT Lt. § 87(2)(b) explained that if police officers deem an individual an emotionally disturbed person, police officers have the authority on scene to consider someone an emotionally disturbed person, EMTs cannot. EMT Lt. § 87(2)(b) agreed with PO Rieger's assessment of § 87(2)(b) being classified as an emotionally disturbed person **[Board Review 10]**

PO Rieger testified that inside her apartment, § 87(2)(b) was walking and screaming. PO Rieger asked § 87(2)(b) whether she had any mental diagnoses. She told him that she was a licensed therapist and that she was on two medications. § 87(2)(b) did not make any statements of harm to herself or anyone else. However, he was not comfortable with leaving § 87(2)(b) and § 87(2)(b) together; he did not know what would happen if they were left alone. In the kitchen, PO Rieger decided that § 87(2)(b) was going to the hospital. § 87(2)(b) was an emotionally disturbed person based on the information he gathered: the radio run of an assault, § 87(2)(b)s erratic behavior; the interview of § 87(2)(b) which contradicted § 87(2)(b)s account; and § 87(2)(b) being on medication. § 87(2)(b) was a danger to herself or § 87(2)(b). PO Rieger touched § 87(2)(b)s right arm. She offered mild resistance, saying that she did not want to go. Once § 87(2)(b) was downstairs, he told the EMTs that § 87(2)(b) was off her medication and needed to be evaluated. The EMTs disagreed with PO Rieger's assessment and were giving § 87(2)(b) the option of not going to the hospital. PO Rieger spoke to an EMT supervisor and informed the EMT supervisor that § 87(2)(b) was off her medication and what the officers' encountered at the scene. The EMT supervisor made the determination to send § 87(2)(b) to the hospital. PO Rieger stated that § 87(2)(b) was not committing any crimes for which she could have been arrested **[Board Review 04]**

PO Schultz testified that § 87(2)(b) was consistently upset, screaming, and erratic as the officers spoke to her in the apartment. PO Schultz did not recall § 87(2)(b) making any statements of harm to herself or anyone else. The officers asked § 87(2)(b) whether she wanted medical attention. She asked to be checked out for her injuries **[Board Review 05]**.

Sgt. David Gomez testified that he received a call from PO Rieger who informed him that

an EMS supervisor was going to arrive to the scene. PO Rieger told Sgt. Gomez that § 87(2)(b) was acting irate and that he wanted to have her evaluated. He also informed Sgt. Gomez that EMS at first did not want to have § 87(2)(b) transported to the hospital but ultimately decided they were going to send her to the hospital. PO Rieger did not explain what led to EMS eventually deciding to transport § 87(2)(b). PO Rieger informed Sgt. Gomez that the EMT supervisor authorized the removal of § 87(2)(b) to the hospital. Sgt. Gomez did not physically respond to the scene [Board Review 18].

The investigation requested signed HIPAA forms from § 87(2)(b). As of the date of this report, she has not provided these forms to the investigation.

NYPD Patrol Guide Procedure 221-13 provides members of service with guidelines on safeguarding mentally ill or emotionally disturbed persons who do not voluntarily seek medical assistance. When a uniformed member of the service reasonably believes that a person who is apparently mentally ill or emotionally disturbed, the person must be taken into protective custody because the person is conducting himself or herself in a manner likely to result in a serious injury to himself or others [Board Review 16].

§ 87(2)(g)

Allegation (D) Discourtesy: Police Officer Jason Rieger spoke discourteously to § 87(2)(b).

BWC footage from PO Rieger [Board Review 01, timestamps 14:29 to 17:00] captures the entirety of his interaction with § 87(2)(b) as she asks for her purse as she is being brought to the ambulance. § 87(2)(b) yells and asks for her purse and identification card. Further along in the incident, from 30:24 to 30:53, § 87(2)(b) requests her purse and tries to hand her keys to PO Rieger. PO Rieger ignores her request and closes the ambulance door. At no point in the footage does PO Rieger use any profanity toward § 87(2)(b).

§ 87(2)(b) stated that when she was inside the ambulance, she asked PO Rieger for her purse multiple times. PO Rieger told her either “I don’t give a shit” or “I don’t give a fuck” [Board Review 03].

PO Rieger did not recall using any profanity to § 87(2)(b) [Board Review 04].

§ 87(2)(g)

Allegation (E) Offensive Language: Police Officer Jason Rieger made offensive remarks to § 87(2)(b) based on a perceived mental illness.

Allegation (F) Discourtesy: Police Officer Jason Rieger spoke discourteously to § 87(2)(b).

BWC footage from PO Rieger [Board Review 01, timestamps 26:55 to 27:17] captures the officer speaking to the EMTs about § 87(2)(b)’s medication. PO Rieger tells the EMTs, “She’s gotta get psyched, bro” and tries to convince them that § 87(2)(b) needs to be medically evaluated.

§ 87(2)(b) stated that when the EMTs were evaluating her, PO Rieger interrupted the assessment and told the EMTs, “She’s crazy and on psych meds” and that the EMTs needed to take

§ 87(2)(b) to the hospital [Board Review 03].

PO Rieger denied calling § 87(2)(b) “crazy” [Board Review 04].

§ 87(2)(g)

Allegation (G) Abuse of Authority: Police Officer Jason Rieger refused to provide his name to

§ 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Jason Rieger failed to provide § 87(2)(b) with a business card.

BWC footage from PO Rieger [Board Review 01, timestamps 46:11 to 47:09] captures EMT Lt. § 87(2)(b) speaking to § 87(2)(b) while PO Rieger stands outside the ambulance. In barely audible audio, she tells EMT Lt. § 87(2)(b) that she needs a card or PO Rieger’s name. EMT Lt. § 87(2)(b) tells PO Rieger that § 87(2)(b) needs his card. PO Rieger says, “Sure.” PO Rieger takes out a business card and writes on it. PO Rieger hands the card to PO Schultz, who is inside the ambulance. PO Rieger walks away.

§ 87(2)(b) asked PO Rieger for his name and business card more than once. PO Rieger, who was by the ambulance, walked away without providing either name or business card to § 87(2)(b). She began to cry and asked the EMTs to get PO Rieger’s business card. One of the EMTs obtained PO Rieger’s card and gave it to § 87(2)(b) [Board Review 03].

PO Rieger did not recall § 87(2)(b) asking for his name. PO Rieger did not believe that § 87(2)(b) asked for his business card. He believed someone, possibly PO Schultz, provided § 87(2)(b) with a business card [Board Review 04].

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Rieger has been a member-of-service for 14 years and has been a subject in 10 CCRB complaints and 25 allegations, none of which were substantiated. § 87(2)(g)
- PO Schultz has been a member-of-service for one year and has been a subject in two CCRB complaints and four allegations, none of which were substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 22, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident [Board Review 14].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 11

Investigator: _____ Inv. Mike Talisayan 10/24/2022
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 10/24/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date